

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 08/25/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-02692
CASE NAME: SYNCHRONY BANK VS. CHIMEON ROBINSON
MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT
AND RELEASE AGREEMENT
FILED BY: SYNCHRONY BANK
TENTATIVE RULING:

Plaintiff filed a Motion, filed on 3/11/26, to Enter Judgment Under Settlement Agreement, along with accompanying documents. Plaintiff provided mail notice to Defendant at the address where he was personally served with with process.

The Motion was originally scheduled for 6/23/26, but apparently was continued by the court to 8/25/26.

This court does not find that the parties were given proper notice for the 8/25/26, date.

Disposition

This Motion will be continued to 10/6/26, 9am.

The Court will provide notice to both parties.

2. 9:00 AM CASE NUMBER: L24-04232
CASE NAME: CITIBANK N.A. VS. GINO MAYNETTO
TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT
FILED BY:

***TENTATIVE RULING**

NEEDS NEW DATE

Background

Plaintiff filed, on 5/20/26, an amended Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he served – via substitute service - with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

However, this Motion was originally scheduled for 6/23/26, yet the court continued it to 8/25/26. Though the court provided mail notice to the Plaintiff of this change, there is no evidence that Defendant was given notice.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,578.34, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,381.82.

Costs are \$583.61.

However, this court finds that Defendant was not given notice of this hearing.

Disposition

Plaintiff's Motion is continued.

Plaintiff to notify Defendant of new date of hearing.